

Court No. - 29

Case :- WRIT - C No. - 10343 of 2021

Petitioner :- Rakhi Sant

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Satyaveer Singh

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Pankaj Naqvi,J.

Hon'ble Naveen Srivastava,J.

Heard Sri Satyaveer Singh, learned counsel for the petitioner, Sri Pranjal Mehrotra for Respondents no. 2 and 3 and the learned Standing Counsel for the State.

The petitioner, a lady, has filed this writ petition for a mandamus commanding respondents no. 2 and 3 to continue to supply electricity at her Flat no. A-95/E LIG, National Apartment, Shalimar Garden, Extension-2, Ghaziabad.

The grievance of the petitioner is that she has a marital discord with her husband Madan Pal and with a view to harass her, he lodged a complaint before respondents to disconnect her power supply, who otherwise is living in the said accommodation along with her children. The petitioner represented before the Authority concerned, who expressed their helplessness on the ground that the owner / husband did not give his consent.

We are of the considered view that neither in the Electricity Act 2003 nor in the U.P. Electricity Supply Code, 2005, there is any provision, which prohibits the Power Corporation / licensee either to refuse to grant or discontinue power supply only on the pretext that the consent of the owner is not forthcoming or that the dispute is pending.

This Court in ***Divya Sahni Vs. State of U.P. and others, Writ-C No. 2008 of 2021, decided on 17.3.2021*** has already taken a view that supply of electricity constitutes one of the essential services without which the survival of a person would be mere animal existence.

Learned counsel for the petitioner further undertakes that petitioner is ready and willing to clear off any liability, which may be incurred on account of consumption of electricity, to which Sri Mehrotra submits that if that be so, there would be no impediment to restore the electricity supply forthwith.

We have no reason to disbelieve his statement.

The writ petition is **allowed**.

The respondents are directed to consider the request of the petitioner for forthwith restoration of the electricity supply in accordance with law.

Order Date :- 26.3.2021

N.S.Rathour